



2022-2023

National Case Set

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**NATIONAL HIGH SCHOOL
ETHICS BOWL**



COLLEGE OF ARTS AND SCIENCES
Parr Center for Ethics

Contents

ABOUT THIS DOCUMENT

The cases in this set were compiled for the NHSEB National Championship during the 2022-2023 National High School Ethics Bowl season, and edited for content, clarity, and pedagogical focus by [NHSEB's Executive Committee](#), in editorial collaboration with [NHSEB's Case Advisory Committee](#).

Source materials cited in this Case Set will only be identified once per case, though may be referenced more than once within a given case.

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1. Trouble on Rocky Top

On October 15th, 2022, the Tennessee Volunteers defeated the Alabama Crimson Tide in football when Chase McGrath kicked a 40-yard field goal as time expired, ending the game 52-49 in Tennessee's favor. It was the first time in 15 years that Tennessee had beaten Alabama. Fans celebrated the win, immediately storming the field. They ended the celebrations by tearing down one of the goalposts and throwing it in the Tennessee River.

These types of celebrations by fans after historic wins are not isolated events, nor are they anything new. Storming the field has happened countless times in the 2022 College Football season alone, with teams such as LSU, Florida State, and South Carolina all storming the field after big rivalry wins. Kansas, a school known for a less-than-stellar football team, stormed the field after beating their first-ranked team since 2010. They also tore down a goalpost and threw it in Potter Lake on campus.

These types of celebrations don't come without repercussions to schools, players, or fans. After any Southeastern Conference team (such as Tennessee, LSU, or South Carolina) sees fans storm the field, it must pay a fine of \$50,000 at the first incident, \$100,000 at the second, and \$250,000 every time after the second. This season, Tennessee received the \$100,000 fine, and LSU received the \$250,000 fine. This can not only be costly for schools, but also places players, coaching staff, and the fans themselves in danger. Players on the losing team are on the field as fans storm it, placing them in difficult situations, and leading to altercations between winning fans and losing players, such as when an Oregon State fan was punched by an Oregon player after Oregon lost to its rivals. Fans themselves bear much of the risk when storming the field, as there have been countless examples of injury, with some fans even needing hospitalization.

Even with the high costs and risk associated with these events, many support the act. When University of Tennessee President Randy Boyd was asked about the costs of rushing the field and tearing down the goalposts, he responded, "It doesn't matter. We'll do this every year."¹ Tennessee students described rushing the field as a "dream come true."² A similar storming of Franklin Street in Chapel Hill after UNC's Final Four game victory ending the career of Duke Basketball Coach Mike Krzyzewski, no hero to Tar Heel fans, brought nearly 40,000 people to the streets to celebrate what many fans deemed to be the end of a long standing rivalry. With these types of celebrations being so supported by the fans, it is unlikely they will stop occurring any time soon.

DISCUSSION QUESTIONS

1. To what extent do university administrations have an obligation to prevent raucous celebrations like rushing a football field?
2. Is it wrong for individual sports fans to participate in these types of celebrations? Why or why not?
3. What values, if any, are fans tracking when defending their celebratory practices?

¹ <https://atozsports.com/nashville/watch-tennessee-president-randy-boyd-vols-posts/>

² https://www.utdailybeacon.com/campus_news/campus_events/pandemonium-reigned-again-in-knoxville-as-fans-celebrated-alabama-victory/article_cd44c544-4e6a-11ed-8358-030400e064b2.html

2. #Sharenting

In September 2022, TikTok creator Caroline Easom shared an anonymous letter sent to her by a teen who had grown up on a popular family vlogging channel. The teen, who first went viral as a toddler, spoke out against the many downsides of their monetized, public childhood, including forced and tireless work, a lack of privacy, inappropriate messages from adult viewers, and the way that monetization warps caretaker-child relationships. “[I]f you manage to [achieve virality],” the teen warned prospective family vloggers, “your child will never be normal. You will be their boss, and they will be your employee.”¹

Children who work in the entertainment industry are protected by some of the most stringent labor laws in the country, but social media platforms with user-generated content are still largely unregulated.² Some proponents of family vlogging, however, claim that responsible family vlogging does not qualify as child labor at all. Ami McClure, the mother of YouTube famous twins Ava and Alexis McClure, argues that her children don’t work—she and her husband do. In an *Wired* interview with Bee Fisher, a mother with Instagram-famous sons, Fisher’s three-year-old son Tegan hardly seems to understand what Instagram is at all.³ When family vlogging goes wrong, proponents argue that the blame lies with caretakers who have acted abusively, not with family vlogging itself. When monetized family vlogging goes right, profits can fund the children’s education and help caretakers build a platform for sharing positive messages with large audiences.

Others argue that all monetized activities are work. Former child star Sheila James Kuehl says that play “is not play if you’re making money off it.”⁴ Furthermore, it can be difficult to separate “work” from “life” when, as on family vlogging channels, “real life” is the product. Money incentivizes family vloggers to shape “life” according to profitability. The teen in Caroline Easom’s video instructs children forced to star on monetized channels to “perfect [their] thumbnail face and fake smile...,” implying that the motivating factors of money and fame can fundamentally change how child stars understand non-work activities and authentic emotions.

To date, children on monetized YouTube channels have no legal protections to guarantee that the money from the channels will ever reach their pockets. Opponents of unregulated family vlogging argue that if vlogging is work, then children on monetized channels should receive the same protections against exploitation as employees in any other industry.

DISCUSSION QUESTIONS

1. How far does parents’ authority over their children extend?
2. On what grounds can children claim to be exploited by their guardians?
3. What makes an activity count as work?

¹ https://www.tiktok.com/@caroline_easom/video/7149213992307674410?is_from_webapp=v1&item_id=7149213992307674410&lang=en

² <https://www.theguardian.com/media/2019/apr/24/its-not-play-if-youre-making-money-how-instagram-and-youtube-disrupted-child-labor-laws>

³ <https://www.wired.com/story/age-of-kidfluencers/>

⁴ <https://www.theguardian.com/media/2019/apr/24/its-not-play-if-youre-making-money-how-instagram-and-youtube-disrupted-child-labor-laws>

3. A LINE in the Sand

Urban livability, some argue, is in jeopardy. Responding to the environmental crisis inciting this problem, the NEOM Company has broken ground on a new project in the desert of the Red Sea coast. But this won't be just any residential development. In 2022, Saudi Arabian Crown Prince and NEOM Board Chairman Mohammed bin Salman introduced the world to THE LINE, "the city of the future."¹

The community will run entirely on renewable energy: no roads, cars, or emissions. Most notably, this development will not be organized by any definition of "traditional." Instead, embodying its name, THE LINE is projected to be just over 200 yards wide, about 105 miles long, and sits about a third of a mile above sea level. It will quite literally resemble a line—and an invisible one at that: its outside walls will be paneled with mirrored glass, allowing the city to seamlessly blend into the surrounding desert. Accommodating 9 million people within 21 square miles featuring year-round climate control, the city will foster a greatly reduced carbon footprint while ensuring residents enjoy the surrounding "natural" features. All facilities will be accessible within a five-minute walk, and a high-speed rail can take visitors end-to-end within twenty minutes.

To some, bin Salman's proposal sounds like a utopia. By gathering "a team of the brightest minds in architecture, engineering, and construction" and establishing an alternative way to live, there is no denying that THE LINE redefines the idea of urban living, providing the rest of the world a blueprint for hypothetical civilizations of the future. Its residents' wellbeing will be prioritized alongside infrastructure and transportation: NEOM advertises a lack of pollution and traffic accidents, as well as "world-class preventative healthcare."

However, for others, the ability to live, learn, and work in a walkable, carbon negative community seems to be an out-of-character offer from an oil-rich country like Saudi Arabia. The Kingdom possesses roughly 17% of the entire world's known petroleum reserves, exporting 6,227,000 barrels of crude oil each day.² Other critics point out that NEOM's efforts could be interpreted as a move to divert attention away from Saudi Arabia's dark track record of human rights abuses. In November 2013 alone, more than 370,000 foreign migrant workers were deported, with 18,000 still detained in March of 2019.³ Human rights organizations are banned, and protests are often criminalized or even provoke death sentences. Many activists have been detained without trial for over two years, and human rights advocates Mikhlif bin Daham al-Shamarri and Omar al-Sa'id endured respective two and three hundred lashes at the hand of the Saudi Arabian justice system. With the track record of the Saudi government in mind, is the prospect of THE LINE too good to be true, or too groundbreaking to ignore?

DISCUSSION QUESTIONS

1. What are the moral trade-offs between building a brand new city and investing in existing communities which are already struggling?
2. To what extent can THE LINE be a "green" development project given its connections to the oil industry?
3. What, if any, are the ethical concerns with a single private company providing basic needs for the residents of an entire city?

¹ <https://www.neom.com/en-us/newsroom/hrh-announces-theline-designs>

² https://www.opec.org/opec_web/en/about_us/169.htm

³ <https://www.amnesty.org.uk/saudi-arabia-human-rights-raif-badawi-king-salman>

4. Mushroom Magic

Recently in the U.S., there has been a resurgence of interest in the use of psychedelics such as psilocybin, MDMA, and LSD. Although most of these substances have been banned since 1970 as part of the Controlled Substances Act, when they were deemed to have no medical value, new research supports their mental health benefits. Placebo-controlled trials of psychedelic-assisted therapy, during which a patient takes a drug like MDMA in a controlled setting with the support of therapists, suggest that it is more effective than psychotherapy alone or with other psychopharmacological medications.¹ According to journalist and author Michael Pollan, research “suggests a single experience with psilocybin guided by trained professionals has the potential to relieve ‘existential distress’ in cancer patients; break addictions to cigarettes, alcohol and cocaine; and bring relief to people struggling with depression.”² In 2018, the Food and Drug Administration granted “breakthrough therapy” status to psilocybin as a treatment for depression. In 2020, voters in Oregon passed Measure 109, legalizing the sale of psilocybin in the state of Oregon.

Advocates point out that the reasons for banning psychedelics back in 1970 were largely a political attempt to curb the hippie counterculture. Advocates reason that psychedelics should be legal for individual consumption because they are not physically addictive and cannot cause fatal overdoses. Further, psychedelics can expand consciousness and may have spiritual significance in some communities. For example, Native Americans have used peyote in religious rituals for thousands of years.

Critics argue that psychedelics are psychologically addictive and may cause anxiety, erratic behavior, and even suicide. They point out that little is known about the long-term effects of these potent drugs or how they affect the brain. Another criticism points out that drug companies and entrepreneurs stand to make huge profits if a legal market for psychedelics opens up. Some argue that these financial incentives should not allow companies to be the ones to decide public policy. Any change in the law, they say, should be based on science, medicine, and what is best for potential patients. “Big business has caught onto a promising profit scheme: sky-high medical claims to sell new and largely unknown mind-altering drugs,” says Kevin Sabet, a former White House drug policy adviser. “It worked with marijuana, calling it medicine, and now they are using the same playbook with psychedelics.”³

DISCUSSION QUESTIONS

1. Should psychedelic drugs like psilocybin and LSD be legal for individual consumption in the United States? Why or why not?
2. Is a ballot initiative (such as Oregon’s Measure 109) the best way to decide whether to legalize or decriminalize psychedelics? Why or why not?
3. What morally relevant differences, if any, are there between psychoactive drugs and other kinds of drugs which are often used recreationally?

¹ <https://harmreductionjournal.biomedcentral.com/articles/10.1186/s12954-021-00489-1>

² <https://www.nytimes.com/2019/05/10/opinion/denver-mushrooms-psilocybin.html>

³ <https://nypost.com/2021/12/04/psychedelics-pros-and-cons-as-the-drugs-become-more-legal/>

5. NIL-lionaire

With the legalization of college athletes being able to earn money based on their name, image, and likeness, commonly called 'NIL,' an age-old concern has surged back to the forefront of college athletics: the sexualization of female athletes for profit. Olivia Dunne, a gymnast at Louisiana State University, has been at the center of much of this controversy. Dunne, through NIL and her 8.3 million social media followers, is estimated to be the top earner among female athletes, earning somewhere over 2 million dollars as a student-athlete, a feat unimaginable in collegiate gymnastics just a few years prior.

The controversy surrounding Dunne has not come from her NIL earnings but, rather, how she grew her following on social media. Many people credited her social media following to her femininity rather than her skills as a gymnast. People accused Dunne of posting suggestive, flirty videos, known as "thirst traps" in order to become as popular as she has. Stanford Women's Basketball Coach Tara VanDerveer spoke to the New York Times to call out NIL as regressive for female athletes. VanDerveer's concern, along with many others, is that NIL is not empowering female athletes but, instead, is upholding sexism in athletics.

Dunne and her supporters argue that what high-earning female athletes have been able to achieve has empowered young women across the nation to be able to pursue their dreams of going to college and being able to succeed and earn substantial money off of their careers as athletes. Where many male athletes have the ability to go professional in their respective sports, that option isn't available for many female athletes. NIL has somewhat closed the gap, providing female athletes opportunities to make more of their time as a student-athlete.

Advocates argue that NIL not only empowers female athletes but that the concerns about young women posting suggestive videos are unfounded. According to Dunne herself, being flirty and showing off her body in ways that emphasize traditional notions of female beauty on social media is empowering to both her and other young women. After all, it is her body, and Dunne has the ability to dictate how much she shows on social media.

DISCUSSION QUESTIONS

1. What obligations do female athletes have as role models to young women when considering NIL opportunities?
2. What should sponsors consider when paying a female athlete to endorse their products?
3. How should women receiving NIL earnings think about traditional beauty standards, if at all?

6. Oh, the *Humanity*!

On November 6, 2022, German charity vessel *Humanity 1* arrived at an Italian port carrying 179 migrants who were designated as “rescued at sea.” The Italian port authority accepted 144 of the migrants, primarily minors and those in need of medical assistance, but refused to accept the remaining 35 migrants on the ship.¹ In protest of Italy's refusal to process all the migrants onboard, the captain of the *Humanity 1* has refused to leave the port until the remaining migrants have been allowed to disembark.²

Since 2010, the European Union has seen a stark influx of migrants and asylum seekers hoping to find a better life in Europe. In recent years, right-wing governments have been elected to leadership positions in a number of EU member states and have the explicit objective of reducing immigration which many now see as a problem. EU humanitarian law dictates that, should someone seeking asylum set foot on EU soil, they must be processed thoroughly within the country where they arrived, and if they are found to qualify as an asylum seeker under the United Nations’ definition, they are permitted entry. Countries on the borders of the EU face many steep costs surrounding the processing of asylum seekers and migrants due to their ease of access by outside parties. Italy in particular sees a significant number of migrants due to its location on the Mediterranean Sea and proximity to Africa.

A number of EU countries have spoken out against Italy's refusal to accept the remaining migrants, including Germany and France, as well as the non-governmental organizations that rescue and transport individuals saved in the Mediterranean to Europe. Many believe that these migrants should be allowed to enter the country because they have a right to live in safety. However, the Italian Government claims that Italy is not obligated to host non-citizens, particularly when the NGOs that carry them do not disclose their routes or intention to transport migrants.

DISCUSSION QUESTIONS

1. Should the fact that the current Italian government was democratically elected on a platform to *reduce* immigration rates figure in their decision to accept migrants from the *Humanity 1*? If so, how?
2. Is it morally justifiable for Italy to limit admissions to minors and those needing medical assistance?
3. In cases of conflicting values, should the Italian government prioritize the well-being of its citizens or its humanitarian aims?

¹ <https://www.pbs.org/newshour/world/italy-closes-its-ports-to-rescue-ships-leaving-1100-migrants-in-limbo>

² <https://www.reuters.com/world/europe/italy-allows-minors-sick-leave-migrant-ship-2022-11-06/>

7. In a Pickle

Deborah and Joe have been playing pickleball together since they were kids. It used to be a fair competition between the two, but now Deborah's skills far surpass Joe's. Deborah still likes Joe's company, but she feels ready to face tougher opponents. Penelope and Patricia have always been much better players than both Deborah and Joe. Joe often complains about how condescending they act when they see Joe miss a ball or trip on the court.

Patricia is sick, so Deborah receives an invite to play with Penelope on Friday, the same day that she usually plays with Joe. Deborah knows this is her chance to finally test her skills against better competition, but she doesn't want to skip out on Joe. She decides that she can play with both on different days. Since she is less comfortable with Penelope, she explains her situation to Joe and asks if he would play on Thursday instead. Joe is appalled that Deborah would even think about playing with one of the "Pickle Princesses" who bully him, especially on their designated day, so he gives her an ultimatum: if she plays with Penelope, Joe will never play with her again. Deborah tries to reason with him, but Joe won't have it. It's him or Penelope.

Deborah would rather keep Joe as a friend and playing partner than take the chance to play with Penelope, but after his response, she feels hurt, and she is no longer sure whether Joe has her best interests at heart. She thinks he is being selfish, and she is worried that she might never get the chance to play someone of her level if he continues to act like this. On the other hand, she knows Patricia will probably be healthy by next week, so she would be throwing away her lifetime friend for one outing of pickleball. Yet, she knows in the back of her head that Joe will eventually get over it because their friendship is stronger than Penelope's forehand, but she can't be sure. Friday morning comes and Deborah is still not sure what to do. She wants to be a good friend, but she doesn't think Joe is being fair.

DISCUSSION QUESTIONS

1. Does Deborah owe Joe anything in this case? What obligations come with friendship?
2. Does Joe have a right to be angry? Is he being a bad friend?
3. Is it ethical for Deborah to abandon a friend for her own personal development?

8. It's Corn!

For years, one of the biggest inhibitors of corn agricultural yield was the larvae of the European corn borer. These caterpillars chew through corn plants, causing major damage to them. This problem has been addressed by producing bt-corn, a Genetically Modified Organism (GMO) that makes the corn toxic to the corn borers.¹

GMOs are just one of many ways in which we influence the plant life that we consume for food, however. Through selective breeding, most of the fruits and vegetables we eat have been engineered by us. The benefits of genetic modification of corn and other important crops are numerous. In addition to repelling insects, our genetic modification has produced crops that have increased nutritional value, greater resistance to disease, and even require less water. These benefits can boost quality of life (especially in poorer countries), and allow us to have tastier and more nutritional food in more places.²

The prevalence of crops that have been so heavily modified are not uncontroversial, however. Some express concerns about potential unknown health effects of GMOs and argue that we've adopted them far too quickly and unquestioningly. There are also concerns about the potential loss of biodiversity resulting from such widespread adoption of specific strains of crops.³

As a specific type of crop (like bt-corn) displaces many other strains, it becomes much rarer to see different varieties of that crop. Many of the common fruits and vegetables we eat are monolithic today, but in the past were much more varied. As a consequence, a single disease that specifically affects a strain of some crop could be absolutely devastating. Adoption of GMOs and other genetically engineered crops may thus make us more vulnerable to widespread catastrophic famine. Others have argued that there is something good about genetic diversity on Earth itself, and that we have a duty to preserve it.

DISCUSSION QUESTIONS

1. How should the immediate benefits of GMOs be weighed against future risks posed by a loss of biodiversity?
2. Do humans have a moral obligation to preserve the planet's biodiversity?
3. Who should have the right to make decisions about the adoption of genetically modified crops?

¹ <https://entomology.ca.uky.edu/ef130>

² <https://mbc.studentlife.umich.edu/2021/12/10/the-safety-benefits-and-future-of-genetically-modified-organisms/>

³ <https://www.medicalnewstoday.com/articles/324576>

9. See Spot Gun

Robots are often used by emergency services to ensure the safety of responders. For instance, firefighters and emergency medical personnel use Boston Dynamics' robot dog Spot to assess dangerous situations and to search hard-to-access areas before sending in personnel. Police departments often use bomb defusing robots to maintain officers' safety in the case of a failed defusing. However, in 2016 the Dallas Police Department ended a standoff by attaching an armed explosive to a defusing robot, sending it toward the suspect, and detonating it to kill him.¹ This unprecedented strategy was justified as being under an extraordinary circumstance that called for the use of the robot outside of its intended functions.

Recently, on November 29, 2022, the San Francisco Board of Supervisors voted to advance a policy allowing the San Francisco Police Department (SFPD) to deploy robots equipped with lethal weapons in extraordinary circumstances. This controversial policy launched heated discussions across the nation and was temporarily banned in a second hearing on December 6, 2022. Supporters of the policy highlight its focus on the safety of SFPD officers. They argue that if there's a technology that can help end violence and save lives, then it should be used. If officers don't have to put themselves in the line of fire, they'll be able to save more lives more effectively. Opposition to the policy highlights its dangers. Lowering the consequences of aggressive policing could increase the likelihood of police violence. Also, these robots are controlled by a remote transmitter and could be hacked or stolen, putting dangerous weapons in the hands of criminals.

Several robotic technology companies including Hyundai's Boston Dynamics have also taken a stance on the issue stating that they will not design their robots to be weaponized, nor will they support anyone who wishes to do so. They assert that robots can be extremely beneficial to humans without weaponization, opting to instead design household and workplace assistants.

DISCUSSION QUESTIONS

1. Who should be held accountable for damages caused by lethal force robots?
2. In what kinds of situations, if any, would the use of lethal force robots be permissible?
3. Do the benefits in terms of potential lives saved override ethical concerns with the use of lethal robotics?

¹ <https://www.npr.org/sections/thetwo-way/2016/07/08/485262777/for-the-first-time-police-used-a-bomb-robot-to-kill>

10. Formula for Disaster

Shirley is a single mother working two jobs to support her newborn baby. Because Shirley cannot breastfeed, she uses baby formula. One day, Shirley runs out of formula and must make an emergency trip to the grocery store to feed her hungry baby. Thankfully, she has just enough money in her bank account to buy another package and still be able to pay for this month's utilities. She heads to the checkout line with the formula, where she sees that the cashier is on the phone and is noticeably distracted. He scans the formula and, after inserting her debit card into the chip reader and entering her pin, the payment screen displays a loading icon for longer than anticipated. She asks the cashier if she is good to go, as she knows that she has enough money on her account to cover the purchase and that she entered the correct pin. The cashier quickly glances at his screen and responds that Shirley is all set and can leave with her purchase. After exiting the store, Shirley remembers her utility bill and electronically sends the remainder of her money to cover the cost. Afterwards, she checks her bank statement and realizes that her payment for the formula did not go through. Her bank app always posts transactions the second they happen, so she knows that there is no delay on a successful payment.

Now that she has paid the utility bill, Shirley lacks the money to go back and pay for the formula. She knows that the formula is a necessity and thinks that failing to return to the store to pay for it may not be theft, because she took it under the impression that the transaction was successful. She also knows that it is highly unlikely for anyone to find out that her payment did not go through and that, if they did, she would be forgiven as it was clear that it was accidental. She thinks that keeping the formula would do more good than it would in the hands of the grocery chain, as it is necessary for the health of her baby.

However, Shirley thinks that stealing is wrong. She grapples with the thought that even though she was unaware the payment was unsuccessful when she left, she is aware now. She knows that she did not pay and is physically capable of returning to the store to return the formula. She is concerned that failing to return it may transform an accident into a theft, despite her good intentions. She is torn between keeping the formula that she needs for her baby, which may be stealing, or returning it and trying to find an alternative.

DISCUSSION QUESTIONS

1. Is it morally wrong for Shirley to keep the formula?
2. Is stealing always wrong? Are there circumstances in which stealing may be morally justified?
3. To what extent is one morally responsible for an act that is done in ignorance?

11. Penniless Portraiture

Artists Sophie Calle and Vito Acconci have taken photographs of people in public spaces without their knowledge.¹ The artists have profited from the sale of these portraits to galleries, collectors, and museums. These institutions have, in turn, also profited from reselling the photographs and displaying them in exhibitions. All the while, the subjects of these photographs have not received a penny from the sale of their likenesses. With this art, people and institutions are profiting from displaying subjects who are unpaid.

Commercials are inextricably used for market purposes. They are created and shown with the express purpose of selling products. Like the portraits, people and institutions profit from commercials. The subjects used in commercials, however, are compensated for their work and from their depiction. Actors, and arguably the rest of society, would be in opposition if commercials used their subjects' depictions for profit without any compensation. Such a move would likely be considered theft, unfair, and unethical business practice.

Conversely, for-profit news channels display the likenesses of people in their stories everyday without payment. From video footage of crowded streets, the interiors of malls and sporting events, to public recordings of passersby, newsreels extensively depict people who are not paid for their appearances. This form of content is central to the workings of news stations and, therefore, is required for them to profit. The content strategy employed by news channels is seldom questioned in common discourse and is typically accepted as fair practice.

Art is often seen as existing in a different arena than the media produced for commercials or news broadcasts in the public consciousness. Despite this, the art world operates in a similar fashion and, in the case of Calle and Acconci, can lead to profit for those that make and sell the work and nothing for those the work depicts. On one hand, entering a public space may entail agreeing to be photographed. The artist's choice to put that work on the market may then be considered morally permissible. However, because the subject is fundamental to the art's existence--and therefore, its sale--it may be that the depicted persons are morally entitled to some form of compensation.

DISCUSSION QUESTIONS

1. Is it ethical for artists and art institutions to profit from the sale of work that depicts subjects who are not compensated?
2. What differentiates the production and dissemination of art from that of commercial content or news broadcasts, for example?
3. Do the uncompensated subjects of portraiture have grounds to complain about exploitation? Why or why not?

¹ <https://hyperallergic.com/305869/following-sophie-calle/>

12. A Random Sample?

In 2019, economists Esther Duflo, Abhijit Banarjee, and Michael Kremer were awarded the Nobel Prize in Economics. Their recognition was driven by a groundbreaking means of testing policy interventions and economic aid: randomized controlled trials (“RCTs”).¹ Though mainstream in the world of medicine and clinical trials, RCTs are a recent but growing development in social science research and economics.

In an RCT, one group receives an intervention, while another does not and hence serves as the “control” group. As the experiment progresses, researchers analyze differences between the experimental group and the control group. Other than the presence of the intervention, the two groups should be similar: this seeks to ensure that any observed effects are driven by the intervention, rather than other external variables. This active experimental approach allows researchers to test for causation much more effectively than simply analyzing existing data that might be influenced by a variety of unobservable variables. Since the 1990s, researchers have begun to employ RCTs to understand the effects of policy interventions, oftentimes in developing economies.

One example is an ongoing experiment conducted by non-profit GiveDirectly. Over a period of 12 years, GiveDirectly will issue direct cash transfers of \$22 per month to randomly selected adults in a village in Kenya.² The objective of the experiment is to test the effectiveness of direct cash transfers in alleviating poverty. In addition to large-scale experiments such as GiveDirectly, many governments have also implemented RCTs to analyze smaller-scale policy interventions.

Many acknowledge that valuable insights stand to be gained from these types of RCTs, as it is essential to have an accurate understanding of how to effectively allocate aid and develop policy. Still, some have questioned whether or not RCTs in a social science setting are ethical. First, many contend that RCTs are exploitative, as they render human beings as experimental subjects that are merely utilized for data. Moreover, some have pointed out that it is immoral to issue a benefit to one portion of the population but withhold it from another, particularly in impoverished areas and developing economies. This inevitable inequality might also create discontent and tension within the community in which the experiment is conducted. As the number of individuals participating in RCTs continues to grow, stakeholders must evaluate the extent to which these “human experiments” can be justified.

DISCUSSION QUESTIONS

1. Is the GiveDirectly cash transfer experiment morally justified?
2. Are random selection effects like those functioning in this case inherently unfair? Why or why not?
3. Is there a difference between conducting RCTs in impoverished communities and RCTs conducted to test policy interventions in more affluent nations?

¹ <https://www.vox.com/future-perfect/2019/12/11/20938915/nobel-prize-economics-banerjee-duflo-kremer-rcts>

² <https://www.npr.org/sections/goatsandsoda/2017/09/13/542261863/cash-aid-changed-this-family-s-life-so-why-is-their-government-skeptical>

13. An Honest Chat¹

The use of ChatGPT, a natural language processing tool that uses machine learning algorithms to generate written content, has become increasingly prevalent in a variety of contexts, including news articles, social media posts, and even creative writing. Some argue that ChatGPT is an efficient and cost-effective solution for producing large quantities of written content. News organizations may use ChatGPT to quickly generate articles on current events, allowing them to keep up with the fast-paced nature of the industry. Similarly, businesses may use ChatGPT to produce social media posts or marketing materials, saving time and resources that would otherwise be spent on manual content creation.

However, as automation becomes more prevalent, there is a risk that the use of tools like ChatGPT may lead to the displacement of human workers, particularly those in industries such as journalism and marketing. And, questions of intellectual property and authorship complicate how we determine the value and ownership of creative works. As ChatGPT is used to produce written content, many face tough questions about who to credit as the author, given the contributions of the users of ChatGPT, the developers of the tool, and those contributions of the AI itself.

Others are concerned that ChatGPT may contribute to the spread of misinformation. Because ChatGPT is trained on large amounts of existing text, it may produce content that reflects the biases or errors present in those original texts. This could lead to the spread of false or misleading information, potentially causing harm to individuals or society as a whole. And, the use of automated tools like ChatGPT may lead to a homogenization of written content, as the tool may produce writing that lacks the unique perspective and voice of a human author. This could have negative consequences for the diversity and richness of our cultural discourse.

DISCUSSION QUESTIONS

1. What moral factors ought companies or media organizations consider when evaluating whether and how to use AI-generated written content?
2. What broad social and cultural impacts ought to remain at the forefront of public discussion as we adopt new AI technologies?
3. What user concerns should AI developers prepare for when designing new AI writing technologies?

¹ An initial draft of this case was successfully produced by OpenAI's ChatGPT bot. It has been edited for content and clarity by the NHSEB Case Advisory Committee and the NHSEB Executive Committee.

14. Operation Paperclip

In the aftermath of World War II, United States intelligence smuggled over 1,600 German scientists, engineers, and technicians out of Germany and into the U.S. in a covert program called Operation Paperclip.¹ The U.S. government went to great lengths to whitewash the pasts of these former Nazis, some of whom were involved in despicable war crimes. The most notable scientist was Wernher von Braun, who was a member of the SS, Adolf Hitler's executive force that led the implementation of the "Final Solution," the genocide of the European Jews.² Von Braun also was the lead scientist in an underground slave labor facility where he designed the rockets that were used to decimate England. The purpose of Operation Paperclip was to gain a military advantage over the Soviet Union, who relocated more than 2,200 German scientists in response. The operation was a success, as it was von Braun who designed the rockets that put America on the moon. Despite their roles in Nazi war crimes and human rights violations, seemingly none of the scientists were ever held accountable for their actions.

The United States government excused known war criminals in order to get ahead in fields of science, war, and defense. Yet these men apparently committed no further crimes after their relocation to the U.S. It could be said that the former Nazis made up for their pasts by providing groundbreaking developments in the scientific fields. If they had been imprisoned, it would have been detrimental to scientific progress, and it might have cost the United States the edge in the Cold War.

Critics of Operation Paperclip claim that technological progress is no excuse for letting crime go unpunished, no matter the consequence. Even if the beneficial consequences could have outweighed the harm done, they assert that the circumstances of the Cold War were not dire enough to ignore the atrocities committed by the Nazis thanks to these scientists. The fact that scientists like von Braun could get away with horrible crimes solely on account of their intellectual talent disturbs many, especially those who have been punished for far less.

DISCUSSION QUESTIONS

1. Is it ever morally permissible to excuse moral evils for the sake of scientific or social progress?
2. Could the United States government have permissibly punished Nazi scientists while also requiring their continued work, and benefitting from that work?
3. Should scientists be held responsible for the way in which their research is used by other parties?

¹ <https://www.npr.org/2014/02/15/275877755/the-secret-operation-to-bring-nazi-scientists-to-america>

² <https://encyclopedia.ushmm.org/content/en/article/ss>

15. An Immodest Proposal?

Antonio recently received an email from his high school acquaintance, Jade, with a sensitive question. In the email, Jade shares her desire to have a child soon since she is almost forty. She says that she is single but also skeptical of in vitro fertilization (IVF) and artificial insemination (IUI), which she worries would be painful, expensive, and unreliable. So, she asks Antonio if he would help her conceive a child naturally through sex.

Jade explains that she contacted Antonio because she thinks he has excellent genes, which she hopes he could pass on to her child. She reassures him that she is financially capable of raising a child on her own and that he would not be expected to be responsible for the child in any way. She even offers to keep his name off the birth certificate and to sign an agreement waiving her right to receive child support from him. She concludes by thanking Antonio for his consideration and acknowledging that this is an unusual request.

Antonio feels torn by Jade's request. On the one hand, he doesn't feel comfortable fathering a child whom he may never get to know—let alone raise. He also doesn't feel comfortable having sex with a mere acquaintance with whom he hasn't spoken in over a decade. Moreover, he has strong religious beliefs which explicitly prohibit sex acts outside of marriage.

On the other hand, Antonio finds her request sincere, as he understands that becoming a parent by conceiving a child is a deeply meaningful experience for lots of people. He respects her desire to invest in the next generation by becoming a parent at a time when many societies' birth rates are plummeting. He believes Jade would take good care of the child they conceived and that the child wouldn't even have the chance to exist unless he chooses to help her. And he worries that turning her down would embarrass and discourage her, and possibly deprive her—and the world—of a child who is likely to be happy, healthy, and academically gifted.

DISCUSSION QUESTIONS

1. Regardless of his ultimate decision, how should Antonio feel in response to Jade's email?
2. How should we evaluate Jade's request in and of itself?
3. Should the fact that Antonio considers Jade a mere acquaintance make a meaningful difference to his consideration of her request? Why or why not?